

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2890

By: Townley

AS INTRODUCED

An Act relating to schools; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-401), which relates to student communication; creating an opt-out exception; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-401), is amended to read as follows:

Section 6-401. A. As used in this section:

1. "Electronic or digital communication" includes, but is not limited to, emails, text messages, instant messages, direct messages, social media messages, messages sent through software applications, and any other electronic or digital means of communication; and

2. "School personnel" means teachers, coaches, administrators, school bus drivers, or any other persons employed full-time or part-time by a public school or charter school.

1 B. School personnel engaging in electronic or digital
2 communication with an individual student shall include the student's
3 parent or legal guardian in any electronic or digital communication,
4 unless ~~such~~:

5 1. Such communication is on a school-approved platform and
6 related to school and academic communications; or

7 2. The student's parent or legal guardian opted out of being
8 included in the electronic or digital communication. A student's
9 parent or legal guardian shall be able to opt out at any time and
10 identify which types of electronic or digital communication to opt
11 out of.

12 C. Exceptions to the requirement in subsection B of this
13 section may be made in case of an emergency, subject to subsequent
14 notification to the parent or legal guardian. School personnel
15 shall make reasonable efforts to use school-approved platforms,
16 systems, or applications that allow automatic inclusion of parents
17 or legal guardians in communications with students.

18 D. Schools shall provide training, developed by the State
19 Department of Education, for school personnel on the student
20 communication requirements of this section.

21 E. Any school personnel who is reported to be in violation of
22 subsection B of this section shall be put on administrative leave
23 while the school district investigates the incident and notifies the
24 board of education. If the investigation finds that no misconduct

1 occurred, the school personnel shall be reinstated and the incident
2 shall be noted in the school personnel's employee file. If the
3 investigation finds misconduct occurred, the school personnel shall
4 be disciplined according to the school district board of education's
5 policy, up to and including termination of employment, and the
6 incident shall be reported to law enforcement pursuant to Section
7 1210.163 of ~~Title 70 of the Oklahoma Statutes~~ this title.

8 SECTION 2. This act shall become effective July 1, 2025.

9 SECTION 3. It being immediately necessary for the preservation
10 of the public peace, health or safety, an emergency is hereby
11 declared to exist, by reason whereof this act shall take effect and
12 be in full force from and after its passage and approval.

13
14 60-1-10006 AQH 11/06/24
15
16
17
18
19
20
21
22
23
24